

18CV05728 Mark Signa et al vs The Regents of the University of CA et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

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Motion: Motion: Dismiss

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Tentative Ruling: Mark Signa et al vs The Regents of the University of CA et al

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Mon, 06/08/2026 - 09:00

Nature of Proceedings

Motion: Dismiss

Tentative Ruling

For the reasons stated herein, the motion of defendants The Regents of the University of California and University of California Santa Barbara Police Department to dismiss plaintiff Ryan Smith's action is denied.

Background:

This case number 18CV05728 (the Signa Action) is consolidated for pretrial purposes with Santa Barbara Superior Court case number 19CV01625, entitled John Doe v. The Regents of the University of California Santa Barbara, et al. (the Smith Action); Santa Barbara Superior Court case no. 19CV01431 entitled Michael Little, et al. v. The Regents of the University of California, et al. (the Little Action); Santa Barbara Superior Court case no. 19CV04418 entitled Matthew Stern v. The Regents of the University of California, et al. (the Stern Action); Santa Barbara Superior Court case no. 19CV02586 entitled Jonathan Lee Reyes v. The Regents of the University of California, et al. (the Reyes Action); and Santa Barbara Superior Court case no. 21CV01256 entitled Ryan Hashimoto v. The Regents of the University of California, et al. (the Hashimoto

Action).

Court records relevant to this proceeding reflect that on March 27, 2019, plaintiff Ryan Smith (Smith) filed a complaint in the Smith Action (the Smith Complaint) against defendants The Regents of the University of California Santa Barbara (the Regents) and the University of California Santa Barbara Police Department (collectively, the Regents Parties), asserting five causes of action: (1) violation of Labor Code section 1102.5; (2) violation of the California Whistleblower's Protection Act section 8547; (3) failure to take corrective action; (4) false light; and (5) intentional infliction of emotional distress.

On May 20, 2019, Smith and the Regents filed a joint motion or stipulation to stay the Smith Action pending the exhaustion of administrative remedies by Smith (the Smith Stipulation).

On May 22, 2019, the court signed and filed an order staying the Smith Action.

February 16, 2021, the Regents filed an answer to the Smith Complaint.

On July 14, 2021, the Regents filed in the Smith Action, a notice of the filing of an unopposed motion by the Regents (the Regents Consolidation Motion) in the Signa Action, for an order transferring and consolidating with the Signa Action for pretrial purposes, the Smith Action, the Little Action, the Stern Action, the Reyes Action, and the Hashimoto Action.

On September 17, 2021, the court issued a minute order (the September 17 Order), granting the Regents Consolidation Motion, and ordering the Signa Action, the Smith Action, the Little Action, the Stern Action, the Reyes Action, and the Hashimoto Action consolidated for pretrial purposes only. A copy of the September 17 Order was filed in the Smith Action.

On February 26, 2025, the court entered judgment in favor of the Regents, the UCSB-PD, and the University of California Santa Barbara, and against plaintiff Ryan Hashimoto, as to the complaint filed in the Hashimoto Action.

On August 8, 2025, a trial confirmation conference (TCC) was held in the Signa Action. After the TCC, the court issued a minute order (the TCC Order) setting the Smith Action for a seven day jury trial to commence on June 8, 2025.

On October 2, 2025, a trial call order was filed in Smith Action, ordering that action to start trial on the date certain of June 8, 2026.

On June 1, 2026, the Regents filed an ex parte application (the application) for an order shortening time to hear motions to dismiss the Smith Action, the Little Action, the Signa Action, the Stern Action, and the Reyes Action. On that same date, defendants Dustin Olson, Cathy Farley, David Millard, Robert Romero, Greg Pierce, and Greg Smorodinsky (collectively, the Individual Defendants) filed a joinder to the application, and Smith filed an opposition to the application.

On June 2, after a hearing, the court issued a minute order (the Ex Parte Order) granting the application; specially setting a hearing on the forthcoming motion to dismiss the Smith Action for June 8, 2026; and ordering that any opposition to that motion be filed and served by 12 p.m. on June 4, with any reply to be filed and served by 10 a.m. on June 5.

The present motion for an order dismissing the Smith Action, which was filed on June 1 by the Regents and the University of California Santa Barbara Police Department (collectively, the Regents Parties), is made on the ground that, pursuant to Code of Civil Procedure section 583.310, and emergency rule 10(a), the latest deadline to commence trial of the Smith Action expired no later than June 1, 2026, such that the Smith Action, which is currently scheduled for trial on June 8, 2026, is subject to mandatory dismissal pursuant to Code of Civil Procedure section 583.360.

On June 4, Smith filed an opposition to the motion. The Regents Parties filed their reply to that opposition on June 5.

Analysis:

“An action shall be dismissed by the court ... on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in [Code of Civil Procedure section 583.310 et seq.].” (Code Civ. Proc., § 583.360, subd. (a).) The requirements of Code of Civil Procedure section 583.310 et seq., “are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.” (Code Civ. Proc., § 583.360, subd. (b).)

“An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) Noted above, court records in the Smith Action show that Smith filed the Smith Complaint on March 27, 2019. The motion is supported by a declaration of the Regents Parties’ counsel, Enrique M. Vassallo (attorney Vassallo), who concedes that the Smith Complaint was filed on that date. (See Vassallo Dec., ¶ 3, exhibit 1.)

“In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed:

“(a) The jurisdiction of the court to try the action was suspended.

“(b) Prosecution or trial of the action was stayed or enjoined.

“(c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.” (Code Civ. Proc., § 583.340.)

The motion also presents no information or evidence disputing that on May 22, 2019, the court, pursuant to a stipulation of the Regents and Smith, ordered the proceedings in the Smith Action stayed as further detailed above. (See also Vassallo Dec., ¶¶ 5-6 & exhibits 2-3.) The available information and evidence also shows, without dispute, that similar stay orders were entered in the Signa Action, the Little Action, the Reyes Action and the Stern Action. (Vassallo Dec., ¶ 6 & exhibits 4-7.)

Attorney Vassallo states that, between January 15 and January 25, 2021, the court entered orders lifting the stays of the Signa Action, the Little Action, the Reyes Action and the Stern Action. (Vassallo Dec., ¶¶ 7-9 & exhibits 8-11.) The court has no record showing the entry of a similar order lifting the stay of the Smith Action. In addition, the motion of the Regents Parties and the supporting declaration of attorney Vassallo show, and effectively concede, that no party to the Smith Action filed a motion for an order lifting the stay of those proceedings. (Vassallo Dec., ¶ 10.)

Attorney Vassallo further states that, after the court ordered the stays of the Signa Action, the Little Action, the Stern Action, and the Reyes Action lifted, the Regents Parties proceeded in the Smith Action the same manner as those actions, including by filing and serving an answer to the Smith Complaint on February 16, 2021, as also noted above. (Vassallo Dec., ¶ 11 & exhibit 12.) Because Smith did not object to the filing of that answer and actively litigated the Smith Action by participating in discovery, motion practice, and case management conferences, attorney Vassallo uses the date of January 25, 2021, which is the last date on which the court entered an order lifting the stay of the consolidated matters described above, to determine the time during which the Smith Action was stayed. (Vassallo Dec., ¶¶ 12-14.) For these reasons, the Regents Parties argue, the Smith Action was stayed for a total of 614 days. (Vassallo Dec., ¶ 15.)

The records in the Smith Action show, and the motion presents no information or evidence to dispute, that the documents filed in that case after May 22, 2019, consist of notices of changes in address or firm name, a substitution of attorney filed by the Regents, an answer to the Smith Complaint, and notices relating to the Regents Consolidation Motion described above. Apart from the general and conclusory arguments described above, the motion presents no reasoned factual or legal argument, with citations to supporting legal authority, showing why the type of activity described in the motion is sufficient to, unilaterally, lift the stay of the Smith Action absent a court order. The court is also unaware of any legal authority which

provides that a stay may be lifted absent judicial action, including by the type of party activity described in attorney Vassallo's declaration and above. (See, e.g., *MKJA, Inc. v. 123 Fit Franchising, LLC* (2011) 191 Cal.App.4th 643, 656–657 [generally discussing review of a trial court order lifting a stay previously imposed by that court's order].)

Under the circumstances present here, where the court ordered the Smith Action consolidated for pretrial purposes with other actions that were not, at the time of consolidation, subject to a stay order, it can be inferred from the issuance of the September 17 Order, that the court intended to lift, and effectively lifted, the stay of the Smith Action when it ordered the pretrial consolidation on September 17, 2021 (the date the September 17 Order was issued). Smith also notes in their opposition, that the Smith Action remained separate from any other case until that date.

For the reasons discussed above, the available evidence and information shows or suggests that the prosecution and trial of the Smith Action was stayed from May 22, 2019, until September 17, 2021, or for 849 days. The time period during which the Smith Action was stayed is excluded when computing the time within that action must be brought to trial pursuant to Code of Civil Procedure section 583.310. (Code Civ. Proc., § 583.340, subd. (b).)

In addition, and also relevant here based on the date of filing of the Smith Complaint, “the Judicial Council issued 11 emergency rules on April 6, 2020. [Citation.] This included emergency rule 10(a), which provides the following: ‘Notwithstanding any other law, including Code of Civil Procedure section 583.310, for all civil actions filed on or before April 6, 2020, the time in which to bring the action to trial is extended by six months for a total time of five years and six months.’ [Citation.] The rule remained in effect until June 30, 2022.” (*Barron v. Santa Clara County Valley Transportation Authority* (2023) 97 Cal.App.5th 1115, 1123.) Because the Smith Complaint “was filed prior to April 6, 2020, [that] complaint falls within the purview of emergency rule 10(a).” (Id. at p. 1124.)

Because the time during which the Smith Action was stayed overlaps with the extension provided by emergency rule 10, and because Smith is not entitled to duplicative tolling, the Regents Parties argue, Smith is not entitled to “stack” the extension established by emergency rule 10 onto the time during which the Smith Action was stayed. The motion presents no reasoned argument supporting that assertion.

Further, emergency rule 10 “is located in appendix I of the California Rules of Court.” (*Ables v. A. Ghazale Brothers, Inc.* (2022) 74 Cal.App.5th 823, 827.) “The ordinary principles of statutory construction govern [the] interpretation of the California Rules of Court. [Citations.] [The] objective is to determine the drafter’s intent. If the rule’s language is clear and unambiguous, it governs.” (*Alan v. American Honda Motor Co., Inc.* (2007) 40 Cal.4th 894, 902.)

The court first considers “the words of a statute, as the most reliable indicator of legislative intent.” (*John v. Superior Court* (2016) 63 Cal.4th 91, 95–96.) Emergency rule 10, set forth above, provides that for “all civil actions filed on or before April 6, 2020,” the time to bring the action to trial is extended by six months. (Cal. Rules of Court, appen. I, emergency rule 10(a).) The clear and unambiguous language of emergency rule 10 does not exempt or except civil actions which are subject to a stay order. The motion also does not explain why the plain language of that rule shows or indicates that the Judicial Council intended to exclude overlapping time periods, or the time within which an action is stayed. Presumably, had the Judicial Council intended to exclude civil actions which are subject to a stay or overlapping time periods, they would have explicitly done so.

For all reasons discussed above, and absent any reasoned argument showing why the express language of emergency rule 10 is unclear or ambiguous, the general and conclusory assertions of the Regents Parties do not show, or persuade the court, that the time within which the Smith Action was stayed must be excluded from the extended time in which Smith must bring that action to trial pursuant to emergency rule 10.

The undisputed present record shows that, pursuant to emergency rule 10(a), the time in which to bring the Smith Action to trial was extended to September 27, 2024. (Vassallo Dec., ¶ 27 [stating, with punctuation and capitalization unchanged, that the “Five year deadline of March 27, 2024 plus the California Judicial Council Emergency Rule 10(a) extension ... is September 27, 2024.”].) The court’s calculations show that, when excluding the 849 days during which the Smith Action was stayed under subdivision (b) of Code of Civil Procedure section 583.340, the Smith Action must, pursuant to Code of Civil

Procedure section 583.310 and emergency rule 10, be brought to trial no later than January 24, 2027, which the court also notes falls on a Sunday. (See, generally, Code Civ. Proc., § 10, § 12, & § 12a.) For these and all further reasons discussed above, the motion fails to show why the Smith Action is subject to mandatory dismissal pursuant to Code of Civil Procedure section 583.360.

Even if the Regents Parties could present information or argument showing why the Smith Action was required to be brought to trial before June 8, 2026, Code of Civil Procedure section 583.330 provides: “The parties may extend the time within which an action must be brought to trial pursuant to this article by the following means:

“(a) By written stipulation. The stipulation need not be filed but, if it is not filed, the stipulation shall be brought to the attention of the court if relevant to a motion for dismissal.

“(b) By oral agreement made in open court, if entered in the minutes of the court or a transcript is made.” (Code Civ. Proc., § 583.330, subds. (a), (b).)

Though “[Code of Civil Procedure] [s]ection 583.330 does not address what terms comprise an oral agreement extending the trial deadline[.]” courts “interpret the oral agreement prong of section 583.330 to be consistent with its written stipulation counterpart in authorizing parties to extend the statutory trial deadline by agreeing to postpone trial to a specific date beyond the statutory period.” (Nunn v. JPMorgan Chase Bank, N.A. (2021) 64 Cal.App.5th 346, 354, 356 (Nunn).)

Though the motion states that the court “ultimately scheduled trial” of the Smith Action for June 8, 2026 (memorandum at p. 15), and includes a copy of the trial call order filed in that action on October 2, 2025, (Vassallo Dec., exhibit 13), notably absent from that motion is any discussion of the TCC, or the TCC Order pursuant to which the court set the trial of the Smith Action on June 8, 2026.

In their opposition, Smith asserts that, at the TCC, the court offered dates within the five year time limit relied on by the Regents; that those dates were rejected by the Regents; and that the court offered June 8, 2026, to which the parties agreed. For these reasons, the Smith argues, the parties agreed in open court to extend the trial of the Smith Action beyond the five year deadline claimed in the motion.

In support, Smith’s counsel, Peter Horton (attorney Horton), states that they personally appeared at the TCC; that counsel for the parties discussed in that proceeding, the sequencing of the actions; that counsel agreed that the Smith Action would be tried first; and that the court thereafter set the Smith Action for a jury trial on June 8, 2026. (Horton Dec., ¶ 18.). Attached to attorney Horton’s declaration is a copy of the TCC Order, and a copy of the transcript that was made of the proceedings in the TCC. (Horton Dec., ¶¶ 8, 16 & exhibits G, P.)

The TCC Order shows that attorney Horton, attorney Jaqueline Orozco (attorney Orozco), and attorney Daphne M. Anneet (attorney Anneet) were present at the TCC. (Horton Dec., exhibit G.) That order reflects that, during the TCC, defendant’s counsel informed the court “that they have contemplated consolidating the cases in which the Plaintiffs are represented by the Dre Law firm. The cases were consolidated for pretrial purposes only, however, no documents have been submitted to make it a true consolidation for trial.” (Ibid.) Further, counsel “agreed that the [Smith Action], will be tried first and the cases that are being contemplated, as indicated by Defendant’s counsel, will follow.” (Ibid.) The TCC Order includes an estimate of 7 days for trial of the Smith Action. (Ibid.)

The TCC Order also reflects that a court reporter was present at the TCC. The court reporter’s transcript of that proceeding also shows that counsel for the Regents Parties, the Individual Defendants, and Smith (respectively, attorneys Orozco, Anneet, and Horton) appeared at the TCC. (Horton Dec., exhibit P at p. 2 & p. 3, ll. 11-20.)

At the TCC, the court asked the parties’ counsel: “So where are we with this case?” (Horton Dec., exhibit P at p. 3, ll. 21-22.) The court also requested that the parties provide “the time estimate for this matter[.]” (Id. at p. 3, ll. 26-27.) In response,

attorney Orozco stated: "the Regents currently are preparing to file a motion for summary judgement with a [sic] projected hearing dates in November and December. Based on the availability of your Court's calendar, we estimate these matters may be set for trial in April -- March or April of 2026." (Id. at p. 3, l. 28-p. 4, l. 5, punctuation and capitalization unchanged.)

After the court again requested a time estimate, attorney Orozco confirmed that the matters are consolidated for pretrial purposes but not for trial, and further stated: "we have contemplated the possibility of consolidating the trial for which plaintiffs are represented by the DRE Law Firm. And if that were the case, given the number of plaintiffs that are involved and represented by that specific firm, we would estimate 10 to 15 days for that if that were to be consolidated. I know that with regard to the case filed by Ryan Smith he has expressed -- and Mr. Horton, I don't mean to put words in your mouth here, but I know that you have expressed that you do not want to consolidate for trial purposes. So I estimate an additional five dates for that." (Horton Dec., exhibit P at p. 4, ll. 6-24, punctuation and capitalization unchanged.)

Following the exchange described above, the court asked to hear from other counsel. (Horton Dec., exhibit P at p. 4, l. 25.) Attorney Horton stated that the trial of the Smith action "will take five days at the most." (Id. at p. 5, ll. 4-5.) Attorney Anneet stated: "We estimate 15 days for the matters that are -- where the plaintiffs are represented by the DRE Law Firm, and then a separate five days for the matter of Ryan Smith." (Id. at p. 5, ll. 10-13.)

Based on the exchange described above, and the information and trial estimates provided by attorneys Orozco, Horton, and Anneet during the TCC, the court proposed trial dates between May 12 and June 4, 2026. (Horton Dec., exhibit P at p. 5, ll. 16-22.) In response, attorney Orozco asked the court: "Would it be possible to begin after June 5th?" (Id. at p. 5, ll. 24-25.)

To accommodate attorney Orozco's request, the court stated: "We could start on Monday June 8th through July 2nd if we needed it. Does that work for everyone?" (Horton Dec., exhibit P at p. 5, l. 27-p. 6, l. 1.) In response, counsel confirmed that those days worked including for the Regents Parties and the Individual Defendants. (Id. at p. 6, ll. 2-3 [also noting that attorney Anneet stated "Yes, that does, your Honor."].) Attorney Anneet also asked: "would this mean two concurrent trials, one for the first set of plaintiffs and then for ... that of [Smith]?" to which the court responded "Correct." (Id. at p. 6, ll. 3-7, punctuation and capitalization unchanged.) Counsel thereafter agreed that the Smith Action would proceed first on June 8, 2026. (Id. at p. 6, ll. 8-17.)

The motion presents no information, evidence, or argument to dispute the content of the TCC Order, or the interchange that occurred during the TCC as reflected in the transcript made of that proceeding and the minutes of the court reflected in the TCC Order. The court also notes that, pursuant to the TCC Order and the exchange described above, the court set the Signa Action for trial to commence on June 18, with a 15 day time estimate for that action "and those considered in consolidation".

The transcript of the TCC shows that the court proposed the specific dates described above based on the information and estimates provided by counsel, and counsel's discussions, and to accommodate the interests of the parties including the Regents whose counsel requested a trial date after June 5, 2026. (See Nunn, supra, 64 Cal.App.5th at p. 356 [discussing the court's accommodation of the parties].)

In addition, the record of the TCC does not, as the Regents Parties appear to suggest, indicate or show that the court unilaterally assigned a trial date without the acceptance of the Regents Parties, whose counsel appeared at the TCC. Instead, the transcript of that proceeding shows that counsel expressly and affirmatively agreed to the specific dates proposed by the court at the TCC. Based on the express agreement to and affirmative acceptance of those dates, it was the court's understanding that the parties agreed that the trial of the Smith Action would proceed first on June 8, 2026, to be followed by those actions considered in consolidation, notwithstanding whether that date, or any other dates, were beyond any statutory deadline to bring the Smith Action to trial.

Moreover, the court does not find the points advanced in the reply of the Regents Parties, including for the first time in regard to the TCC proceedings, persuasive.

For all reasons discussed above, the court finds that the Regents Parties “affirmatively accepted” and “expressed their agreement” that the trial of the Smith Action would commence on June 8, 2026, “when counsel for both sides ‘indicated’ on the record” that the dates of June 8 through July 2, 2026, worked for all parties. (Nunn, supra, 64 Cal.App.5th at pp. 356-357.) “Taken together, these expressions of mutual assent constitute an agreement” to extend any deadline, including the deadline asserted in the motion, to bring the Smith Action to trial until June 8, 2026. (Id. at p. 357.) Therefore, and for these reasons, the court finds that the “interchange” that occurred at the TCC and described above “constitutes an oral agreement within the meaning of section 583.330.” (Id. at p. 356; cf. Randolph v. Trustees of California State University (2025) 117 Cal.App.5th 1228 [noting the lack of any discussion regarding the trial date in a transcript of a conference when “when the trial date was set beyond the mandatory statutory deadline”; that the “minute order from the case management conference ... merely show[ed] that counsel for the parties were present at the case management conference and the trial court set the settlement conference, trial readiness conference, and jury trial dates[]”; and that “[n]othing in the minute order indicates that there was an agreement to the trial date beyond the statutory deadline....”].)

For all reasons discussed above, the present record reflects that the Smith Action is not subject to mandatory dismissal under Code of Civil Procedure section 583.360. Furthermore, the record reflects an oral agreement by the parties to extend the trial of that action to June 8, 2026, that was made in open court and entered in the minutes of the court as shown in the TCC Order and the transcript of the TCC proceedings. Therefore, and for all reasons discussed above, the court will deny the motion.

Judges

Judge Donna D. Geck

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